

Venakta Kishore Nutakki vs Keerti Kata on 7 June, 2024

Bench: K.Lakshman, P.Sree Sudha

THE HONOURABLE SRI JUSTICE K. LAKSHMAN
AND
THE HONOURABLE SMT. JUSTICE P.SREE SUDHA

FAMILY COURT APPEAL Nos.21 and 22 of 2012 and 81 of 2015

COMMON JUDGMENT :

(as per Hon'ble Sri Justice K.Lakshman) The lis involved in these appeals and the parties are one and the same, these appeals were heard together and decided by way of this common judgment.

2. Heard Sri S.Raghuram, learned counsel representing Smt K.Sridevi, learned counsel appearing on behalf of the appellant in F.C.A.Nos.21 of 2012 and 81 of 2015 and respondent in F.C.A.No.22 of 2012.

3. There is no representation on behalf of the appellant in F.C.A.No.22 of 2012 and respondent in F.C.A.Nos.21 of 2012 and 81 of 2015. Perused the record.

Facts:

4. Appellant-wife in F.C.A.No.22 of 2012 had filed F.C.O.P.No.822 of 2009, against respondent-husband under Section 13(1)(ia) of Hindu Marriage Act r/w Section 7 of Family KL,J & PSS,J F.C.A.Nos.21 and 22 of 2012 and 81 of 2015 Courts Act, seeking dissolution of marriage on the ground of cruelty.

5. Respondent-husband had filed I.A.No.675 of 2011 in F.C.A.No.81 of 2015, under Section 27 of Hindu Marriage Act, seeking return of gold ornaments.

6. As discussed supra, appellant-wife had filed aforesaid O.P against respondent-husband seeking dissolution of marriage contending as follows:

7. Their marriage was solemnized on 19.04.2008 as per Hindu rites and customs. It is an arranged marriage. Immediately after marriage, appellant-wife and respondent-husband went to Vijayawada to her in-laws house and stayed there about 10 days.

Dr.K.K.Krishna Kumari, Associate Professor in Women's Studies in Sri Padmavathi Mahila University, appellant's mother-in-law sister accompanied her to Vijayawada. She accepted to stay with her for 3 days. But, she was ill treated by her in-laws. She was told that she was not welcome to

their house as she did not bring expected dowry. She was informed that if she did not leave, she would be harassed. Therefore, she had to leave after reception.

KL,J & PSS,J F.C.A.Nos.21 and 22 of 2012 and 81 of 2015 After reception, her mother-in-law, Smt Shobha Rani took the entire gold and silver articles from the appellant saying that she would keep them in her safe custody. Appellant in-laws also harassed her saying that she did not get dowry. They have expected Rs.2.5 crores as dowry, whereas appellant parents gave gold and silver articles worth about Rs.15 lakhs. During her stay at Vijayawada, her in-laws younger sister-in-law, Sravanthi repeatedly commented her saying that she was not fair and beautiful. They did not even provide food to her. She was compelled to stay there for 10 days. Respondent used to spend his entire day outside house and he used to come home late in the night in inebriated condition. Thus, they made the appellant to stay at Vijayawada miserably.

8. In the first week of May, 2008, appellant along with respondent came to Hyderabad to her parents' house. There also, she insisted additional dowry or otherwise respondent will not take her to U.S.A. Therefore, appellant's mother gave Rs.5 lakhs and assured more money. Both the appellant and respondent went to U.S.Consulate at Chennai for Visa and there appellant came to know that respondent was fined for driving in a drunken KL,J & PSS,J F.C.A.Nos.21 and 22 of 2012 and 81 of 2015 state. With a fond hope that he would change his attitude, she joined him in USA. There was no change in his attitude. He used to come home in drunken state and used to beat her indiscriminately for silly reasons. She suffered torture and harassment, which is intolerable. The said fact was informed to her parents, who came to U.S.A. They tried to convince the respondent. But there was no change.

9. On 27.07.2008, respondent abused the appellant physically for trivial things. She cried throughout the night and became dehydrated. He did not join her in hospital. On the assurance given by the appellant's father that he will pay the bill, respondent joined her in Valley Hospital by calling ambulance. That even in U.S.A, he subjected her to cruelty. On 02.11.2008, the appellant dragged her out of the bed room and started beating her. He beat her on her face with glass due to which she received cut injury on her lip and a tooth was broken. He then asked her to go out of the flat and asked her to get lost. Then she called her sister Deepthi and took her to Jersey City Medical Centre for treatment. The said fact was informed to Jersey City Police Department, who inturn registered a crime on 03.11.2008 KL,J & PSS,J F.C.A.Nos.21 and 22 of 2012 and 81 of 2015 and gave a report observing that there was an incident of domestic violence and it is an aggravated assault. They have also come to a conclusion that due to the physical assault her tooth was broken. The police have arrested the respondent on 03.11.2008 and Riverdale Boro-Municipal Court granted bail to him. A Panchayat was held. Appellant and respondent entered into an agreement and it was reduced into writing on 30.01.2009. In the said agreement, respondent agreed to stop all types of alcohol and agreed to pay \$1000 per month, till appellant get a job in U.S.A. He did not honor the said commitment. Counselor also made certain observations in his report dated 14.03.2009. Due to the said untenable torture, she was compelled to lodge a complaint in Women Police Station, C.C.S., on 22.05.2009, who inturn registered a case in Crime No.235 of 2009 for the offences under Sections 498-A, 323, 506 IPC r/w Section 34 IPC and Sections 4 and 6 of Dowry Prohibition Act. Her father-in-law, mother-in-law, sister-in-law were arrested on 30.05.2009. Thus, according to the

appellant, respondent subjected her to cruelty.

10. Respondent filed counter denying the said allegations. According to him, she only subjected him and his father to KL,J & PSS,J F.C.A.Nos.21 and 22 of 2012 and 81 of 2015 cruelty and she implicated him and his entire family for cruelty. Even then, he expressed his readiness to take the appellant to his company. Therefore, he had filed counter claim in the said O.P, seeking restitution of conjugal rights.

11. To prove the said allegations of cruelty, appellant-wife examined herself as PW-1, her father as PW-2 and filed Exs.P1 to P23 documents. To disprove the said grounds of cruelty and in support of his counter claim, seeking restitution of conjugal rights, respondent-husband examined himself as RW-1 and his mother as RW-2 and filed Exs.R1 to R4. On consideration of the entire evidence, both oral and documentary, vide impugned order dated 21.12.2011, learned Family Court allowed the said O.P filed by the appellant-wife, seeking dissolution of marriage and dismissed the counter claim filed by respondent-husband. Learned Family Court awarded an amount of Rs.30 lakhs towards permanent alimony and Rs.10,000/- towards legal expenses to the appellant and the said amount is payable by the respondent within three months from the date of the said order.

KL,J & PSS,J F.C.A.Nos.21 and 22 of 2012 and 81 of 2015

12. Feeling aggrieved by the said order, respondent-husband preferred an appeal vide F.C.A.No.21 of 2012 to the extent of finding of cruelty and decree on permanent alimony.

13. As discussed supra, the marriage of appellant with respondent was performed on 19.04.2008. She has filed aforesaid O.P. on 16.07.2009. Within a short span of one year three months, there were serious disputes between wife and husband. According to wife, respondent and his parents' sister demanded for an amount of Rs.2 crores towards dowry. She was harassed at Vijayawada, during her stay. With a hope that her husband will change his attitude, she joined respondent in U.S.A. There also, he has harassed her and the said aspect was already narrated supra. In fact, he has assaulted her physically. The same is evident from Ex.P2 i.e., Photostat copy of Jersey City Police Department, Investigation Report, Ex.P3 i.e., Photostat copy of investigation report of Riverdale Police Department, Ex.P4 i.e., Photostat copy of complaint-warrant, Ex.P5 i.e., Photostat copy of Pre-trial intervention order, Ex.P6 i.e., Photostat copy of emergency certificates record of Jersey City Medical Centre of the KL,J & PSS,J F.C.A.Nos.21 and 22 of 2012 and 81 of 2015 appellant and Ex.P7 i.e., Photostat copy of temporary restraint order.

14. It is also relevant to note that Panchayat was held between appellant and respondent, wherein respondent agreed that he will stop taking alcohol and he will not harass the appellant. Terms were reduced in writing vide Ex.P12 i.e., Photostat copy of agreement, dated 30.01.2009 between appellant and respondent. Even then, there is no change in the attitude of the respondent and it is also evident from Ex.P13 i.e., Photostat copy of Counselor's letter and Ex.P14 i.e., Photostat copy of reply given by appellant to the Counselor's letter. She has lodged a complaint against respondent and his family members with Women Police Station, who inturn registered a case in Crime No.235 of 2009 for the offences under Section 498-A and 506 and Section 34 of IPC and Sections 4 and 6 of

Dowry Prohibition Act, against respondent, his parents and sister. They were arrested on 30.05.2009. On completion of investigation, the investigating Officer has filed a charge sheet.

KL,J & PSS,J F.C.A.Nos.21 and 22 of 2012 and 81 of 2015

15. On consideration of the entire evidence, learned Family Court allowed the said O.P, filed by wife seeking dissolution of marriage. However, learned Family Court granted an amount of Rs.30 lakhs towards permanent alimony.

16. Respondent-husband is not aggrieved by the said decree of divorce. He is aggrieved by the aforesaid findings of the Family Court with regard to cruelty and Rs.30 lakhs towards permanent alimony. Therefore, the finding of the trial Court in the impugned order to the extent of granting decree of divorce, dissolving the marriage of appellant-wife with respondent-husband dated 19.04.2008 is confirmed.

17. With regard to granting of aforesaid amount of Rs.30 lakhs towards permanent alimony, learned Family Court relied upon Ex.P8 to Ex.P11 i.e., salary certificates, Exs.15 and 16 i.e., Encumbrance Certificate, Ex.P17 i.e., Photostat copy of Market Value Certificate, Ex.P18 i.e., Photostat copy of Deed of Partition of immovable property in English vide document No.2395/1957, Ex.P19 i.e., Photostat copy of true extract of partition deed in Telugu vide document No.2395/1957, Ex.P20 i.e., Photostat copy KL,J & PSS,J F.C.A.Nos.21 and 22 of 2012 and 81 of 2015 of Conveyance Deed, dated 12.04.2007, Ex.P21 i.e., Photostat copy of car loan papers of the respondent, Ex.P22 i.e., Photostat copy of USA job resignation letter of the respondent and Ex.P23 i.e., Photostat copy of C.C. of sale deed dated 08.03.2007, executed by the father of respondent.

18. On consideration of the said aspects, in Paragraph No.35 to 39, learned Family Court gave specific findings and awarded the said amount of Rs.30 lakhs towards permanent alimony.

19. It is relevant to note that feeling aggrieved by the said order, awarding Rs.30 lakhs towards permanent alimony, husband preferred F.C.A.No.21 of 2012 and vide order dated 28.03.2012, this Court granted interim stay on the condition of respondent depositing half of the permanent alimony granted by the learned Family Court, within a period of eight (8) weeks from the said date. On such deposit, wife is permitted to withdraw the same without furnishing security.

20. As discussed supra, there is no representation on behalf of appellant-wife.

KL,J & PSS,J F.C.A.Nos.21 and 22 of 2012 and 81 of 2015

21. Sri S.Raghuram, learned counsel appearing for respondent- husband had filed written submissions stating that the appellant-wife had filed Execution Petition vide E.P.No.8 of 2013, contending that respondent-husband did not deposit 50% of the amount of permanent alimony awarded by the learned Family Court in compliance with the order granted by this Court on 28.03.2012 and sought for attachment of his salary. The said E.P. was allowed. Since, then salary of husband is getting deducted. He is still working in the very same organization i.e.,Accenture. He has

also filed a copy of notice of attachment order dated 15.05.2013, salary slip for the month of January, 2016, to show that deduction has been made as per the order of this Court in the said E.P. He is also staying in U.S.A and she is also staying in U.S.A. She is working as SAP Consultant. She did not file any application to withdraw the aforesaid amount credited to the Execution Petition i.e., E.P.No.8 of 2013, which shows that she is not interested. She is highly qualified, she is also earning good salary and she is self sufficient. She is not entitled for any permanent alimony.

KL,J & PSS,J F.C.A.Nos.21 and 22 of 2012 and 81 of 2015

22. In the light of the aforesaid discussion, appellant-wife is not entitled for enhancement of permanent alimony i.e., Rs.50 lakhs instead of Rs.30 lakhs. As discussed supra, learned Family Court awarded an amount of Rs.30 lakhs by considering aforesaid documents. Therefore, she failed to make out any case for enhancement seeking permanent alimony. Hence, F.C.A.No.22 of 2012 is dismissed. F.C.A.No.21 of 2012 is allowed in part, modifying the impugned order dated 21.12.2011, holding that appellant-wife is entitled for the amount deposited by the respondent-husband to the credit of E.P.No.8 of 2013 so far. He need not pay any further amount and he is at liberty to take steps accordingly by producing a copy of this order in E.P.No.8 of 2013.

23. As discussed supra, during pendency of O.P.No.822 of 2009, husband had filed an application vide I.A.No.670 of 2011, under Section 27 of Hindu Marriage Act, seeking return of the following ornaments:

1. One gold necklace studded by white stones (diamonds)
2. One more gold necklace (UNCUT diamonds)
3. One silver plate, KL,J & PSS,J F.C.A.Nos.21 and 22 of 2012 and 81 of 2015
4. One kumkum bharan, made of gold At the time of marriage, they presented:-
 1. One white stones (diamonds) gold necklace with full set,
 2. A pair of diamond bangles
 3. Gold ring
 4. Gold sacred rope
 5. Black beats with diamond pendant

24. Vide impugned order dated 21.12.2011, learned Family Court dismissed the said I.A., holding that it is the specific case of the wife in O.P.No.822 of 2009 that after reception, her mother-in-law took the entire gold and silver articles stating that she will keep the same in safe custody. Thereafter, respondent has filed I.A.No.670 of 2011 on 05.09.2011, for return of jewellery. In the counter, he has

not mentioned the said aspects. Neither the husband nor wife produced any evidence, either orally or documentary, in proof of the same.

25. On consideration of the said aspects only, learned Family Court vide impugned order dated 21.12.2011 dismissed the said I.A.No.670 of 2011 in O.P.No.822 of 2009, filed by the husband. It is a reasoned order and well founded. It does not require any KL,J & PSS,J F.C.A.Nos.21 and 22 of 2012 and 81 of 2015 interference of this Court. Thus, F.C.A.No.81 of 2015 fails and the same is liable to be dismissed and accordingly dismissed.

26. In the result, F.C.A.No.21 of 2012 is allowed in part and F.C.A.Nos.22 of 2012 and 81 of 2015 are dismissed. There shall be no order as to costs.

As a sequel, the miscellaneous petitions, if any, pending in the Family Court Appeals shall stand closed.

_____ K. LAKSHMAN, J _____ P.SREE SUDHA, J
Date:07.06.2024 VSL